

15. S-PR-0013560 In Re the Estate of Howe, Scott Jeffrey

Clarification or response is needed: the assignment of interest executed by Paul Howe relates only to a specified real property "contained in the Decedent's estate." Said real property is not an asset of the estate and was not an asset of the estate on the date of execution of the assignment. See attachments to petition. Administrator's clarification or response is needed as to the effect of the narrowly drafted assignment language.

16. S-PR-0013595 In Re the Estate of Scherer, Gerald R.

Missing sufficient notice of hearing for petition for final distribution. Notice as states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

17. S-PR-0013622 In Re the Estate of Marcucci, Laila

Missing account schedules(s) for all disbursements and distributions.

Clarification is needed: summary of account identifies \$20,000 as "Distributions to beneficiaries." The court has not authorized any preliminary distributions. The sole beneficiary of the estate is petitioner as trustee of decedent's trust. Clarification is required as to the nature of these distribution(s), including date, purpose, recipient, and legal authority to make preliminary distribution of estate assets.

18. S-PR-0013686 In Re the Estate of Doupnik, Travis Todd

Missing notice of hearing for petition to compel access to digital assets. Missing service of notice of hearing.

Clarification is needed: the provisions of the Revised Uniform Fiduciary Access to Digital Assets Act, Prob.C. §§ 870–884, cited by petitioner at ¶¶ 6–8 of the petition do not include the language which administrator presents as statutory quotations. Prob.C. §§ 872, 873, and 880(d) do not appear address the matters for which they are cited.

19. S-PR-0013910 In Re the Ernestine Contreras Garcia Liv Trust

Petition to suspend trustee, compel account, appoint interim trustee

Appearance is required for continued hearing on petition to suspend trustee, compel trustee account, and appoint interim trustee.

Trustee account

Appearance is required for continued hearing on trustee account.

Clarification is needed: objections to a purported amended account were filed. No amended account has been filed or set for hearing.

Missing notice of hearing re original trustee account. Missing service of notice of hearing.

Missing verification to account. Prob.C. § 1021.

Account, as filed, does not comply with any format or content requirements of Prob.C. § 1060–1064: missing opening property on hand schedule in required form; missing other charges schedules (receipts, gains on sale); missing credits schedules (disbursements, distributions, losses on sale); trustee's time log is not part of an accounting; trustee may not demand payments from Ricardo Garcia through an account; missing final property on hand schedule.

Missing required trustee report. Prob.C. § 1064.

The account, as filed, cannot be approved.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing. Local Rule 80.1.4.

Ex parte application to advance and adjudicate petition for instructions

Appearance is required for hearing on ex parte application to advance and adjudicate petition for instructions.

20. S-PR-0014170 In Re the Estate of Nelson, Shirley J.

Appearance is required for hearing on amended petition to determine succession to primary residence.

Missing notice of hearing for amended petition. Missing 15 days' service of notice of hearing for amended petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing required allegations at ¶ 9a(3)–(4) (registered domestic partner) and (7)–(8) (issue of predeceased child(ren)).

Missing Attachment 11, including legal property description, APN, and facts showing the residence was decedent's primary residence.